

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 32
JUDICIAL OFFICER: JONI T HIRAMOTO
HEARING DATE: 05/15/2026

ALL APPEARANCES WILL BE BY ZOOM.

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties

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SPECIFY THE ISSUES to be argued.

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Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).)

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Zoom hearing information

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Meeting ID: 161 336 0625

Passcode: 180770

Law & Motion

1. 9:00 AM CASE NUMBER: C23-03249
CASE NAME: AHARON POLIKER VS. INSULATION GURU, INC DBA HVAC GURU
*HEARING ON MOTION IN RE: ENFORCE JUDGMENT
FILED BY: POLIKER, AHARON
TENTATIVE RULING:

This matter came before the Court on May 15, 2026, upon Plaintiff/Cross-

Defendant AHARON POLIKER's ("Plaintiff") unopposed Motion to Enforce Judgment.

Having considered the Motion, the supporting Declaration, the Court's file, and all other matters presented, the Court ORDERS as follows:

1. Defendant shall pay Plaintiff the previously awarded \$8,875.00 in attorneys' fees, as set forth in the Judgment entered on January 8, 2025.
2. Defendant shall also pay \$385.00 in reasonable attorneys' fees incurred by Plaintiff in enforcing the Judgment, pursuant to Code of Civil Procedure § 685.040.
3. Defendant shall additionally pay \$60.00 in recoverable enforcement costs, including the filing fee for this Motion, pursuant to Code of Civil Procedure § 685.070.
4. Post-judgment interest shall continue to accrue on all unpaid amounts at the statutory rate until fully satisfied.
5. All required payments shall be made within 15 days of service of this Order.

THEREFORE, IT IS ORDERED that Plaintiff/Cross-Defendant's Motion to Enforce Judgment Fees and Costs is **GRANTED**.

2. 9:00 AM CASE NUMBER: C23-03249
CASE NAME: AHARON POLIKER VS. INSULATION GURU, INC DBA HVAC GURU
*FURTHER CASE MANAGEMENT CONFERENCE TO TRAIL MOTION TO FORCE JUDGMENT
FILED BY:
TENTATIVE RULING:

See Line #1 above.

3. 9:00 AM CASE NUMBER: C24-00779
CASE NAME: MOORE OKEH VS. HARDEEP SINGH
*HEARING ON MOTION IN RE: EXPUNGE LIS PENDENS (RESET FROM 03.06.2026)
FILED BY:
TENTATIVE RULING:

Before the Court is Defendant Hardeep Singh's Motion to Expunge *Lis Pendens*.

Defendant's unopposed Request for Judicial Notice is **granted**. (Evid. Code § 452 (d), (h); *Fontenot v. Wells Fargo Bank, N.A.* (2011) 198 Cal.App.4th 256, 265.)

Factual Allegations and Background

This matter pertains to a foreclosure sale of real property located at 4651 Shetland Way in Antioch, California (the "Property"). Plaintiffs owned the Property. In 2001, they obtained an equity line of credit of \$150,000 secured by the Property. (¶ 11.) They also had a mortgage on the Property which they obtained from Citibank. (*Ibid.*)

Plaintiffs agreed to automatic withdrawal of payments for their mortgage and the line of

credit from their checking account. (¶ 14.) At some point in time, the automatic withdrawals created overdraft problems, so they stopped the automatic payments. (¶ 15.) These overdrafts prevented Plaintiffs from refinancing the line of credit. (¶ 16.) Plaintiffs continued to miss payments over the years. (¶¶ 17-19.) They sought a loan modification, but it was denied. (¶ 20.) They attempted to pay off the amount owing under the line of credit, but the bank did not respond. (¶ 21.)

On July 22, 2023, Plaintiffs received a letter indicating that the trustee sale of the Property was being postponed from July 18 to August 29, 2023. (¶ 24.) Plaintiffs again tried to pay off the loan and/or obtain a loan modification, without success. (¶¶ 25-26.)

On or about January 5, 2024, the Property was sold at public auction to Defendant Singh for \$315,000. (¶ 28.) Plaintiffs contend they were not given proper notice of the sale. (*Ibid.*) Thereafter, Defendant Singh sought rent from Plaintiffs and ultimately filed an unlawful detainer against them. (¶¶ 32, 34.)

As a result, Plaintiffs filed their Verified Complaint on April 3, 2024 asserting fourteen causes of action: (1) Set Aside Trustee Sale; (2) Cancellation of Trustee Deed; (3) Quiet Title; (4) Breach of Oral Contract; (5) Breach of Written Contract; (6) Wrongful Foreclosure; (7) Promissory Estoppel; (8) Negligence; (9) Negligent Misrepresentation; (10) Fraud; (11) Violation of the Rosenthal Fair Debt Collection Practices Act; (12) Unfair Business Practices (B&P 17200); (13) Breach of Contract; and (14) Declaratory Relief. After Defendant Singh's demurrer to the Complaint was sustained with leave to amend, Plaintiffs filed the operative First Amended Complaint on December 11, 2024, asserting the same 14 causes of action.

On November 13, 2024, US Bank filed a motion to compel arbitration. The motion was unopposed and the Court granted the motion on May 2, 2025 – ordering the matter to arbitration. On May 28, 2025, Plaintiffs filed a Notice of Lis Pendens. Defendant Singh filed the motion to expunge on October 2, 2025.

On February 6, 2026, the Court continued the hearing on the motion and requested additional briefing on the issue of the Court's jurisdiction to rule on the motion to expunge given that the matter has been compelled to arbitration. Both parties filed supplemental briefs, per the Court's request. The Court will now rule on the Motion.

Legal Standard

"[A] lis pendens is recorded by someone asserting a real property claim, to give notice that a lawsuit has been filed which may, if that person prevails, affect title to or possession of the real property described in the notice." (*Federal Deposit Ins. Corp. v. Charlton* (1993) 17 Cal.App.4th 1066, 1069, citing CCP §§ 405.2, 405.4, 405.20.) Under Code Civ. Proc. § 405.30, at any time after a notice of pendency of action has been recorded, any party with an interest in the real property may apply to the Court to expunge the notice.

“The expungement statutes provide that a lis pendens may be expunged on three grounds: (1) ‘the pleading on which the notice is based does not contain a real property claim’ (Code Civ. Proc., § 405.31); (2) ‘the claimant has not established by a preponderance of the evidence the probable validity of the real property claim’ (Code Civ. Proc., § 405.32); or (3) ‘adequate relief can be secured to the claimant by the giving of an undertaking’ (Code Civ. Proc., § 405.33).” (*Carr v. Rosien* (2015) 238 Cal.App.4th 845, 857.) Probable validity is met when the Plaintiff establishes her claim by a preponderance of the evidence. (Code Civ. Proc., § 405.32.)

“Unlike most other motions, when a motion to expunge is brought, the burden is on the party opposing the motion to show the existence of a real property claim.” (*Kirkeby v. Superior Court* (2004) 33 Cal.4th 642, 647 citing Code Civ. Proc. § 405.30.)

The party prevailing on an expungement motion must be awarded reasonable attorney fees and costs incurred in making or opposing the motion unless the court finds the other party acted with “substantial justification” or that other circumstances make the imposition of attorney fees and costs “unjust.” (Code Civ. Proc., § 405.38.)

Defendant’s Citation to Legal Authority

The Court must begin by noting that it appears that defense counsel may have relied on using Artificial Intelligence (AI) to assist with preparing their Supplemental Brief regarding the Court’s jurisdiction to hear this motion. Many of the citations in their brief either do not exist, do not refer to the correct case, and/or do not stand for the proposition asserted.

In the section titled: “Ruling on Expungement Does Not Intrude on the Arbitrator’s Rule,” counsel cites to four cases: *Rubenstein v. Smith* (1994) 29 Cal.App.4th 1636, 1646; *Berg v. Wiley* (1996) 41 Cal.App.4th 1211, 1219; *City of San Diego v. Miller* (1999) 77 Cal.App.4th 27, 31–32; and *La Jolla Beach & Tennis Club, Inc. v. Industrial Indem. Co.* (2016) 1 Cal.5th 1, 9–10. None of these cases exist.

Defense counsel cites the first two cases for the proposition that “California courts have consistently recognized that this inquiry [determining if claimant has established ‘probable validity’ of a real property claim] is summary, provisional, and procedural, not a final determination on the merits.” (Brief at 4:22-5:2.) The first citation, 29 Cal.App.4th 1636, 1646 does not refer to a case styled as *Rubenstein v. Smith*. Instead, it cites to the case of *People v. Thompson* (1994) 29 Cal.App.4th 1635, which ends on page 1641. The pin cite of 29 Cal.App.4th 1646 actually cites to the case of *Fredrics v. Paige* (1994) 29 Cal.App.4th 1642, which continues on to page 1650. The only case the Court could find styled as *Rubenstein v. Smith* is a federal case in the Central District of California – 132 F.Supp.3d 1201. None of the above cases include discussions of a lis pendens or motion to expunge or make any reference to a ruling on such a motion not being a final determination on the merits.

Likewise, 41 Cal.App.4th 1211, 1219 cites to the matter of *Arellanes v. Civil Serv. Com.* (1995) 41 Cal.App.4th 1208 which runs through page 1218. The pin cite refers to *People v. Biddinger*

(1996) 41 Cal.App.4th 1219. A search in Lexis for the case of *Berg v. Wiley* fails to identify any California case, or any case with those names in 1996. Again, neither of those cases include discussions of a lis pendens or motion to expunge or make any reference to a ruling on such a motion not being a final determination on the merits.

City of San Diego v. Miller (1999) 77 Cal.App.4th 27, 31–32 also does not exist. The citation refers to *Paredes v. Superior Court* (1999) 77 Cal.App.4th 24 which goes through page 37. The Court has been unable to find a California case styled as *City of San Diego v. Miller*. There is a *County of San Diego v. Miller* (1975) 13 Cal.3d 684, but it also does not support Plaintiff's contention that courts "routinely resolve lis pendens motions at early procedural stages, including alongside demurrers, motions to dismiss, or prior to discovery." (Brief at 5:4-5.)

Finally, *La Jolla Beach & Tennis Club, Inc. v. Industrial Indem. Co.* (2016) 1 Cal.5th 1, 9–10 is another incorrect citation. Instead, that citation refers to the matter of *In re Isaiah W.* (2016) 1 Cal.5th 1 which runs through page 20. That matter involves interpretation and application of the federal Indian Child Welfare Act of 1978 – and has nothing to do with a lis pendens or expungement action. Unlike the other citations, there is a case styled as *La Jolla Beach & Tennis Club, Inc. v. Industrial Indem. Co.*, but its correct citation is (1994) 9 Cal.4th 27 and it pertains to discussions of workers' compensation – not any real property issues of lis pendens matters.

In *Noland v. Land of the Free, L.P.* (2025) 114 Cal. App. 5th 426, a unanimous panel of the Court of Appeal for the Second Appellate District held:

[R]elying on fabricated legal authority is sanctionable. As a district judge recently held when presented with nonexistent precedent generated by ChatGPT: "A fake opinion is not 'existing law' and citation to a fake opinion does not provide a non-frivolous ground for extending, modifying, or reversing existing law, or for establishing new law. An attempt to persuade a court or oppose an adversary by relying on fake opinions is an abuse of the adversary system." (citations omitted) *Noland*, supra, 114 Cal. App. 5th at 445.

As noted by the *Nolan* court, it is a fundamental duty of attorneys to *read* the legal authorities they cite to determine that the authorities stand for the proposition for which they are cited. (*Ibid.*) Failing to do so is sanctionable conduct.

The court has no direct evidence that counsel for Plaintiff used AI to write the section of the brief at issue. But the citations identified above appear to be fabricated (that is, made up, non-existent), and counsel submitted them to the court. It is unclear whether counsel submitted them knowing they were non-existent, or counsel simply did not read the citations before submitting them. **Even the latter is problematic.** As the *Noland* court explained,

To state the obvious, it is a fundamental duty of attorneys to *read* the

legal authorities they cite in appellate briefs or any other court filings to determine that the authorities stand for the propositions for which they are cited. Plainly, counsel did not read the cases he cited before filing his appellate briefs: Had he read them, he would have discovered, as we did, that the cases did not contain the language he purported to quote, did not support the propositions for which they were cited, or did not exist. (See *Benjamin v. Costco Wholesale Corp.*, *supra*, 779 F.Supp.3d at p. 343 [“an attorney who submits fake cases clearly has not *read* those nonexistent cases, which is a violation of [the federal equivalent of § 128.7]”]; ... Counsel thus fundamentally abdicated his responsibility to the court and to his client. (See *Kleveland v. Siegel & Wolensky, LLP* (2013) 215 Cal.App.4th 534, 559 [“‘It is critical to both the bench and the bar that we be able to rely on the honesty of counsel. The term “officer of the court,” with all the assumptions of honor and integrity that append to it, must not be allowed to lose its significance’”].) (Emphasis in original, citation omitted.) *Noland*, *supra*, 114 Cal. App. 5th at 445.

In *Noland*, the court found that “nearly all” of the legal quotations in the plaintiff’s opening brief, and “many” of the quotations in the reply brief were fabricated. (*Noland*, *supra*, 114 Cal. App. 5th at 430.) In addition, “many of the cases plaintiff cites do not discuss the topics for which they were cited.” (*Id.* at 430.)

The *Noland* court concluded, “Sanctions may be awarded to the respondent to compensate for the costs of responding to a frivolous appeal, or to the clerk of the court for conduct that unnecessarily burdens the court and the taxpayers.” (*Noland*, *supra*, 114 Cal. App. 5th at 447.) Counsel in the Nolan case was sanctioned \$10,000 payable to the court, the attorney was directed to serve a copy of the court’s order on his client, and the clerk of the court was directed to serve a copy of the court’s opinion on the State Bar.

The Court does not take kindly to the submission of improper and non-existent legal authority. It drastically increases the Court’s work by requiring extra time to review and confirm each and every one of counsel’s citations. The Court is notifying counsel that it will be issuing an order to show cause why they should not be sanctioned for these actions.

Analysis

Jurisdiction

“[A] lis pendens may only be recorded when an action is pending in state or federal court.” (*Manhattan Loft, LLC v. Mercury Liquors, Inc.* (2009) 173 Cal.App.4th 1040, 1051.) To obtain an expungement order, ‘any time after notice of pendency of action has been recorded, any party ... may ***apply to the court in which the action is pending*** to expunge the notice.’ (Code

Civ. Proc. § 405.30.)

The motion to expunge is “confine[d] ... to the court where ‘the action’ of which notice has been recorded is pending to avoid inconsistent judgments and forum shopping.” (*The Formula Inc. v. Superior Court* (2008) 168 Cal.App.4th 1455, 1464.) As such, only the court where the notice of pendency was filed can hear a motion to expunge.

Plaintiffs argue that once the Court ordered the matter to arbitration it lost the ability to rule on the motion to expunge. They contend that the Court only has “to deal with a very limited set of issues including intervening if parties are unable to select an Arbitrator, to confirm, correct or vacate an arbitration award,” and expungement of a lis pendens is not one of those functions. (Brief at 2:3-9.)

Although the matter has been compelled to arbitration, there is still a state action pending in this Court. While the Court ‘shall’ stay an action sent to arbitration until the arbitration is concluded, it must do so only “upon motion of a party to such action or proceeding....” (Code Civ. Proc. § 1281.4.) Neither party requested a stay, and the Court has not issued a stay.

As Plaintiff’s authority states: “Once a court grants [a] petition to compel arbitration **and stays the action at law**, the action at law sits in the twilight zone of abatement with the trial court retaining merely a vestigial jurisdiction over the matters submitted to arbitration....” (*Lew-Williams v. Petrosian* (2024) 101 Cal.App.5th 97, 105.) Importantly, the instant matter has not been stayed. As neither party requested a stay, the Court can infer that the parties did not want to divest the Court of all ability to address issues between the parties while the arbitration proceeded.

As noted above, only the Court can hear the motion to expunge the lis pendens. (*The Formula Inc.*, supra, 168 Cal.App.4th at 1464.) It would be unreasonable for a party to have no recourse to challenge the validity of a lis pendens while an arbitration was pending. This is especially true here.

Plaintiff filed his initial complaint on April 3, 2024. On June 24, 2024, Defendant Singh demurred to the Complaint. On November 13, 2024, US Bank filed a motion to compel arbitration. Defendant Singh’s demurrer was sustained with leave to amend on November 15, 2024. The operative FAC was filed on December 11, 2024. The Court granted the unopposed motion to compel arbitration on May 2, 2025. The notice of lis pendens was filed almost a month later – on May 28, 2025, almost a year after the initial complaint.

Plaintiff waited almost a year after the initial complaint, over six months after the motion to compel arbitration was filed, and almost a month after the motion to compel was **granted** to file the notice of lis pendens. Waiting so long to file a notice of lis pendens, especially after the matter is ordered to arbitration, then claiming the Court cannot rule on a motion to expunge raises issues of due process and appears to be legal gamesmanship by Plaintiff. It

would be unreasonably prejudicial to a defendant not to be able to challenge an improper notice of lis pendens just because the plaintiff waited until the matter was sent to arbitration before he filed it.

The reason for limiting the court's jurisdiction during the pendency of the arbitration is to prevent a court from interfering with the arbitration. This concern is not relevant since the arbitrator has no authority to consider the motion to expunge. Furthermore, the Code allows for a party to seek expungement of a lis pendens "[a]t any time after notice of pendency of action has been recorded." (Code Civ. Proc. § 405.30.)

Based on the above, the Court finds that it does have jurisdiction to rule on the Plaintiff's motion to expunge the lis pendens.

Expungement

A "lis pendens may be expunged if the action does not contain a real property claim or the claimant fails to establish the probable validity of the real property claim." (*Newell v. Superior Court* (2024) 107 Cal.App.5th 728, 735 quoting *De Martini v. Superior Court* (2024) 98 Cal.App.5th 1269, 1275.)

Real Property Claim

As to the first ground, "the court must expunge a lis pendens if the court finds the pleading on which the lis pendens is based does not contain a real property claim." (*Newell*, 107 Cal.App.5th at 735.) "In determining whether a pleading contains a real property claim, the court engages in 'a demurrer-like analysis.'" (*Ibid.* quoting *Kirkeby v. Superior Court* (2004) 33 Cal.4th 642, 647-48.) "Rather than analyzing whether the pleading states any claim at all, as on a general demurrer, the court must undertake the more limited analysis of whether the pleading states a real property claim." (*Kirkeby*, 33 Cal.4th at 648 citations omitted.) "Review 'involves only a review of the adequacy of the pleading and normally should not involve evidence from either side, other than possibly that which may be judicially noticed as on a demurrer.'" (*Ibid.* citations omitted.)

A 'real property claim' is defined, as relevant here, as "the causes of action in a pleading which would, if meritorious, affect (a) title to, or the right to possession of, specific real property" (Code Civ. Proc. § 405.4.) The FAC sets forth several causes of action which assert real property claims. These include the claim to (1) set aside trustee sale, (2) cancel the trustee deed, and (3) quiet title to the Property. In fact, a party is required to file a lis pendens "upon commencement of" a quiet title action. (Code Civ. Proc. § 761.010.) As there is at least one cause of action that asserts a real property claim, the first prong of the expungement analysis is met.

Defendant Singh argues that there is no real property claim asserted against him. The FAC clearly asserts the three above claims against Mr. Singh. As to the argument that Mr. Singh

already prevailed in the unlawful detainer action against Plaintiffs, Mr. Singh fails to provide any evidence that issues pertaining to the title of the Property were addressed in that matter. The Judgment shows that Mr. Singh was entitled to possession of the Property and holdover damages – which would follow given the deed showing he owns the Property. It does not, however, indicate whether the parties litigated the validity of the deed in that proceeding – which would not normally occur. That is the basis of this separate proceeding. To determine the validity of the sale and the deed.

Based on the above, the Court finds that the FAC contains a real property claim.

Probability of Prevailing

“‘If the claimant *does* plead a real property claim, but the claim pleaded has no evidentiary merit, the lis pendens must be expunged upon motion under [Code of Civil Procedure §] 405.32.’ [Citation.]” (*La Jolla Group II v. Bruce* (2012) 211 Cal.App.4th 461, 475; see also *Amalgamated Bank v. Superior Court* (2007) 149 Cal.App.4th 1003, 1011-1012.) Under section 405.32, “the court shall order that the notice be expunged if the court finds that the claimant has not established by a preponderance of the evidence the probable validity of the real property claim.” “Probable validity” means “it is more likely than not that the [plaintiff] will obtain a judgment against the defendant on the claim.” (Code of Civil Procedure §405.3.)

To determine probable validity the court must look beyond the Plaintiff’s pleadings and examine the factual merit of the claim – in effect, forecast the probable outcome at trial. In essence, the Code “requires a minitrial on the merits for making a probable validity finding, not a ‘quasi demurrer-like analysis.’” (*De Martini v. Superior Court* (2024) 98 Cal.App.5th 1269, 1280.) “Nothing in the statute indicates the claimant is only required to make a prima facie case regarding the probable validity of the real property claim. Rather, the statute expressly states the standard is preponderance of the evidence.” (*Ibid.* citing Cal. Code Civ. Proc. § 405.32.)

The essence of each of Plaintiffs’ real property claims rests on the allegations that the Trustee’s Sale occurred without proper notice to the Plaintiffs and due to US Bank’s failure to follow proper procedures in moving forward with the sale.

It is undisputed that Mr. Singh purchased the Property at a nonjudicial foreclosure sale. “As a general rule, the purchaser at a nonjudicial foreclosure sale receives title under a trustee’s deed free and clear of any right, title or interest of the trustor.” (*Moeller v. Lien* (1994) 25 Cal.App.4th 822, 831.) “A properly conducted nonjudicial foreclosure sale constitutes a final adjudication of the rights of the borrower and lender.” (*Ibid.*)

“The purchaser at a foreclosure sale takes title by a trustee’s deed. If the trustee’s deed recites that all statutory notice requirements and procedures required by law for the conduct of the foreclosure have been satisfied, a rebuttable presumption arises that the sale has been

conducted regularly and properly; this presumption is conclusive as to a bona fide purchaser.” (*Ibid.*)

A ‘bona fide purchaser’ “is one who pays value for the property without notice of any adverse interest or of any irregularity in the sale proceedings.” (*Melendrez v. D&I Investments, Inc.* (2005) 127 Cal.App.4th 1238, 1250.) “The elements of bona fide purchase are payment of value, in good faith, and *without actual or constructive notice of another’s rights.*” (*Id.* at 1251 quoting *Gates Rubber Co. v. Ulman* (1989) 214 Cal.App.3d 356, 364.) “It is ‘black-letter law’ that a bona fide purchaser for value who acquires his or her interest in real property without knowledge or notice of another’s prior rights or interest in the property takes the property free of such unknown interests.” (*Vasquez v. LBS Financial Credit Union* (2020) 52 Cal.App.5th 97, 107 quoting *In re Marriage of Cloney* (2001) 91 Cal.App.4th 429,437.)

Defendant Singh presents evidence that he purchased the Property at a publicly conducted nonjudicial Trustee’s Sale. (Singh Decl. ¶ 2, RJN Ex. 3.) After he was the successful bidder at the sale, a Trustee’s Deed Upon Sale was issued to him and recorded, transferring title to him. (Singh Decl. ¶ 3, RJN Ex. 3.) The Trustee’s Deed Upon Sale includes specific language indicating that all notice requirements were complied with. (RJN Ex. 3.) Mr. Singh attests that he had no actual or constructive knowledge of any alleged defects, disputes, or irregularities concerning the foreclosure sale. (Singh Decl. ¶ 4.) He never had any contact with Plaintiffs or US Bank prior to the sale, nor did he have any information regarding any loan modification dispute between those parties. (*Ibid.*) He also paid fair value for the Property in the amount of \$315,000. (*Ibid.*; RJN Ex. 3.)

In opposition, Plaintiffs present some arguments but provide no evidence to counter the above evidence presented by Mr. Singh. There is no declaration disputing any of the above, nor are there any objections to the admissibility of the above evidence. None of Plaintiffs’ arguments address Defendant’s contentions related to being a bona fide purchaser and the presumption that means he has taken title to the Property “free of” any claims by Plaintiffs. Instead, their arguments discuss first and second mortgages and lien priority. None of these issues undermine Defendant Singh’s right to title to the Property as a bona fide purchaser.

Under section 405.32, “the court shall order that the notice be expunged if the court finds that the claimant has not established by a preponderance of the evidence the probable validity of the real property claim.” Plaintiffs have failed to meet this requirement.

Based on the above, Defendant Singh’s motion to expunge the lis pendens is **granted**.

Attorney Fees

California Code of Civil Procedure section 405.38 provides:

The court shall direct that the party prevailing on [a motion to expunge a lis

pendens] be awarded the reasonable attorney's fees and costs of making or opposing the motion unless the court finds that the other party acted with substantial justification or that other circumstances make the imposition of attorney's fees and costs unjust.

Defendant requests attorney fees in the amount of \$4,200.00 based on their time spent preparing the initial motion, and expected time spent preparing the reply and attending the hearing on the matter, which totaled seven hours. (Garabedian Decl. ¶ 5.) Counsel indicates their rate is \$600 per hour. (*Id.* ¶¶ 4-5.) Plaintiffs do not oppose or even address this request in their opposition.

The Court finds that Defendant Singh is the prevailing party as his motion is being granted. The Court also finds that Defendant's request for attorney's fees is reasonable. As such, the Court awards Defendant \$4,200 in attorney's fees.

Conclusion

Defendant's motion to expunge the lis pendens is **granted**. As the prevailing party, Defendant is awarded \$4,200 in attorneys' fees, payable within 30 days of service of notice of entry of this order.

4. 9:00 AM CASE NUMBER: C24-01447
CASE NAME: PAMELA MILLER VS. COSTCO WHOLESALE CORPORATION
HEARING ON SUMMARY MOTION
FILED BY: COSTCO WHOLESALE CORPORATION
TENTATIVE RULING:

Defendant Costco Wholesale Corporation ("Defendant") brings the instant motion for summary judgment ("Motion") against the complaint of plaintiff Pamela Miller ("Plaintiff"). Plaintiff asserts claims against Defendant for: (1) negligence; (2) premises liability; and (3) negligent hiring, training, supervision, and retention of employees or agents, arising out of an incident involving boxes falling on her foot at a Costco location.

For the reasons discussed below, the Court **DENIES** Defendant's Motion.

Legal Standard for Motion for Summary Judgment

Code of Civil Procedure ("CCP") § 437c, subds. (o)(1) and (p)(2) provide the relevant legal standard for deciding Defendant's Motion. Section 437c(o)(1) provides, in relevant part:

A cause of action has no merit if one or more of the elements of the cause of action cannot be separately established, even if that element is separately pleaded.

Section 437c(p)(2) provides, in relevant part:

A defendant or cross-defendant has met his or her burden of showing that a cause of action has no merit if that party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to that cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the mere allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to that cause of action or a defense thereto.

The party moving for summary judgment has the burden of persuasion to show there is no triable issue of material fact and thus it is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Only if the moving party successfully meets this burden does the burden shift to the opposing party to make its own prima facie showing of the existence of a triable issue of material fact. (*Ibid.*; see also *Chern v. Bank of America* (1976) 15 Cal.3d 866, 873.) The scope of the defendant's initial burden is defined by the pleadings. (See *580 Folsom Assocs. v. Prometheus Dev. Co.* (1990) 223 Cal.App.3d 1, 18.)

"[G]enerally speaking the issue of landowner's liability is one of fact." (*Ursino v. Big Boy Rests.* (1987) 192 Cal.App.3d 394, 398.) "Comparing the relative fault of plaintiff and defendants is a question of fact that must be resolved by a trier of fact and cannot be resolved by way of a summary judgment motion." (*Sanchez v. Hillerich & Bradsby Co.* (2002) 104 Cal.App.4th 703, 715.) "Foreseeability of the harm is of primary importance in establishing the element of duty. [Citations]. It is ordinarily a question of fact for the jury, and 'decided as a question of law only if, "under the undisputed facts there is no room for a reasonable difference of opinion." ' " (*Cohen v. Southland Corp.* (1984) 157 Cal.App.3d 130, 138.)

"[I]n considering the existence of 'duty' in a given case several factors require consideration including the foreseeability of harm to the plaintiff, the degree of certainty that the plaintiff suffered injury, the closeness of the connection between the defendant's conduct and the injury suffered, the moral blame attached to the defendant's conduct, the policy of preventing future harm, the extent of the burden to the defendant and consequences to the community of imposing a duty to exercise care with resulting liability for breach, and the availability, cost, and prevalence of insurance for the risk involved. [Citations.] Inasmuch as foreseeability of harm is in most cases, this one included, a question of fact, and triable issues of fact as to foreseeability were present here, the motions by defendants for summary judgment should not have been granted." (*May v. Nine Plus Properties, Inc.* (2006) 143 Cal.App.4th 1538, 1548 [internal quotations omitted].)

"All doubts as to whether there are any triable issues of fact are to be resolved in favor of the

party opposing summary judgment.” (*Ingham v. Luxor Cab Co.* (2001) 93 Cal.App.4th 1045, 1049.)

Background:

Plaintiff alleges she was injured on June 27, 2022, when boxes fell onto her foot while she shopped at a Costco warehouse. (Plaintiff’s Response to Defendant’s Separate Statement of Undisputed Material Facts [“Response to Separate Statement”], No. 1.) Plaintiff was looking to pull a box containing an outdoor umbrella stand from the shelf. (*Id.*, at No. 2.) The box was approximately five feet off the ground and Plaintiff believed the box weighed between 50 – 100 pounds and that she had the ability to lift the box. (*Id.*, at Nos. 3-5.) As Plaintiff pulled the top box from where it was stacked, two boxes stacked below tilted out towards her and fell onto her left foot. (*Id.*, at No. 7.)

On June 3, 2024, Plaintiff filed the Complaint in this matter, which asserts claims for: (1) negligence; (2) premises liability; and (3) negligent hiring, training, supervision, and retention of employees. (Complaint, p. 1.) Plaintiff alleges that she was injured because Defendant “breached its duty of care by failing to properly secure and maintain the [boxes] in a manner that would prevent them from falling and causing harm to customers...” (Complaint, ¶ 20.)

Discussion

Summary of Arguments

Defendant argues that the subject boxes were open and obvious such that Defendant is not liable as a matter of law for failing to rectify or warn Plaintiff of the boxes. (MPA ISO MSJ, pp. 8-10.) Defendant goes on to assert that the subject accident was not foreseeable to Defendant. (*Id.*, at p. 10.) Defendant also argues that Plaintiff cannot meet her burden of showing causation because her “own conduct was the proximate cause of the subject accident” and that “Plaintiff is the sole cause of the accident.” (*Id.*, at pp. 11-12.) Defendant argues that “Plaintiff’s decision to pull on the box rather than lift it off of the stack or ask for assistance was the sole cause of the subject accident.” (*Id.*, at p. 12.) Defendant asserts that Plaintiff cannot show that Defendant breached a duty of care to her and cannot prove causation. (*Ibid.*)

Plaintiff asserts that the boxes were precariously placed by Defendant stacking them vertically and argues that triable issues of fact exist that preclude granting summary judgment. (Opposition, pp. 3-4.) Plaintiff argues that the prime concern in duty analysis is foreseeability and “the Plaintiff was an invitee onto the property as a customer and it was reasonably foreseeable to Defendant and its employees that stacking boxes vertically in a precarious position would create a hazard for its customers when they attempted to retrieve the top umbrella box for purchase.” (*Id.*, at pp. 3:28-4:12.)

Plaintiff portrays Defendant's argument that the boxes were an open and obvious condition as misplaced because the cases Defendant cites are distinguishable. (Opposition, pp. 4-5.) Finally, Plaintiff argues that the foreseeability of the harm and causation are factual issues for a jury to decide. (*Id.*, at pp. 6-7.)

On reply, Defendant argues that there are no disputed facts and that Plaintiff did not produce any evidence that would allow a trier of fact to find in her favor. (Reply, p. 2.) Defendant argues that a party opposing summary judgment cannot rely on speculation or conjecture to defeat the motion but must explain the nature of the dispute and cite admissible evidence supporting that contention. (*Ibid.*) Defendant asserts that it is entitled to judgment as a matter of law because Plaintiff cannot establish that Defendant breached a duty of care to her and that the breach caused the accident. (*Id.*, at p. 4.) Defendant argues that Plaintiff caused the accident because she pulled the top box towards her rather than lifting it or asking for help. (*Id.*, at p. 5.) "Shoppers using due care lift boxes off displays instead of tugging the boxes towards them . . ." and they ask for help if they cannot lift the box on their own. (*Ibid.*) Defendant cites to *Danieley v. Goldmine Ski Associates, Inc.* (1990) 218 Cal.App.3d 111, 121 [operator of ski area not responsible for inherent, obvious, and unavoidable risks of participating in the sport], *Krongos v. Pacific Gas & Electric Co.* (1992) 7 Cal.App.4th 387, 393 ["if a danger is so obvious that a person could reasonably be expected to see it, the condition itself serves as a warning, and the landowner is under no further duty to remedy or warn of the condition," in this case danger of powerlines], and *Shanley v. American Olive Co.* (1921) 185 Cal. 552, 555 [landowner is not required to give to the invitee notice or warning of an obvious danger], as supportive of its position. (Reply, p. 5.)

Defendant argues that it was not foreseeable that someone might pull the box from the stack rather than lifting it, that the boxes were not dangerous if used in a reasonable manner and that Plaintiff failed to use reasonable care, which is what caused the incident. (Opposition, pp. 5-7.)

Defendant Has Not Met Its Initial Burden

As Defendant is moving for summary judgment, it has the burden of showing a complete defense or that one or more elements of Plaintiff's claims cannot be established. (Code of Civ. Proc., § 437c, subd. (p)(2).) Here, Defendant relies on seven undisputed material facts to assert that Plaintiff cannot prove the elements of breach of duty and causation. (MPA ISO MSJ, p. 12; Response to Separate Statement, Nos. 1-7.) The Court finds that these seven facts are not sufficient to so conclude.

The threshold determination of a duty owed is one of law, but foreseeability of the risk is a part of that determination and "[a]lthough foreseeability is normally a question of fact, it becomes a question of law where reasonable minds cannot differ." (*Hooks v. Southern Cal. Permanente Medical Group* (1980) 107 Cal.App.3d 435, 443.) Causation is also typically a

question of fact. (*Id.*, at p. 447 [“Ordinarily, proximate cause is a question of fact, but where the facts are undisputed and only one conclusion can be drawn, it is a question of law.”].)

The incident here involved Plaintiff approaching a display of products in boxes that were stacked vertically with their short side facing down and one in front of another, two wide and two tall. (Dunn Decl., ISO MSJ, ¶ 4, Plaintiff Deposition Exh. 1.) On top of each “row” of vertically stacked boxes there were two boxes resting on top horizontally that were being held up by the vertically stacked boxes. (*Ibid.*) The boxes appear to have weighed between 50-100 pounds. (Response to Separate Statement, No. 4.)

Defendant asks the Court to rule that Plaintiff’s “own conduct was the proximate cause of the accident” and that “Plaintiff is the sole cause of the accident.” (MPA ISO MSJ, pp. 11-12; Reply, p. 7.) However, “[c]omparing the relative fault of plaintiff and defendants is a question of fact that must be resolved by a trier of fact and cannot be resolved by way of a summary judgment motion.” (*Sanchez v. Hillerich & Bradsby Co.* (2002) 104 Cal.App.4th 703, 715.)

The Court finds that it cannot hold as a matter of law that under the undisputed facts there is no room for a reasonable difference of opinion as to whether any reasonable person would have lifted the box up before pulling it towards them—that is a question of fact. Whether Defendant acted properly when it placed two 50-100 pound boxes horizontally on top of rows of vertically placed boxes is also a question of fact. It is possible for a reasonable person to conclude that the incident may not have occurred if: (1) Defendant placed all the boxes horizontally; or (2) Defendant did not place boxes horizontally on top of the rows of vertically placed boxes. This is especially true considering the weight of the boxes and the rule that “[a]ll doubts as to whether there are any triable issues of fact are to be resolved in favor of the party opposing summary judgment.” (*Ingham v. Luxor Cab Co.* (2001) 93 Cal.App.4th 1045, 1049.)

Ruling

The Court **DENIES** Defendant’s motion for summary judgment.

5. 9:00 AM CASE NUMBER: C24-01467
CASE NAME: PROTECTIVE INSURANCE COMPANY VS. STERLING LOGISTICS, A CORPORATION
*HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL
FILED BY: STERLING LOGISTICS, A CORPORATION
TENTATIVE RULING:

The unopposed motion of **Ramin Mozaffar** to be relieved as counsel for Defendant Sterling Logistics, Inc. is **granted**. The motion was initially set for hearing on August 14, 2026, but was advanced per the order of the court to May 15, 2026. Notice of the new hearing date was

served on the Defendant and all parties and was filed with the Court on April 21, 2026.

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. section 284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination upon the consent of both client and attorney, or upon order of the court, upon the application of either client or attorney, after notice from one to the other.

Defendant Sterling Logistics' Counsel has complied with the provisions of this rule and statute providing notice to client and supporting his motion with a declaration articulating the reasons for withdrawal.

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of **Defendant Sterling Logistics'** Counsel to be relieved as counsel of record. This motion is **granted**.

The Court will re-execute and submit a Proposed Order Granting Attorney's Motion to be Relieved as Counsel (Judicial Council Form MC-053), listing the next dates scheduled in the case. The withdrawal is effective upon Ramin Mozaffar filing proof of service of signed order on Defendant Sterling Logistics and all parties.

6. 9:00 AM CASE NUMBER: C24-01746
CASE NAME: JORDAN MOUTON VS. RYAN BUENAFLO
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES
FILED BY: MOUTON, JORDAN
TENTATIVE RULING:

Continued by the parties.

7. 9:00 AM CASE NUMBER: C24-01746
CASE NAME: JORDAN MOUTON VS. RYAN BUENAFLO
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS
FILED BY: MOUTON, JORDAN
TENTATIVE RULING:

Continued by the parties.

8. 9:00 AM CASE NUMBER: C24-02797

CASE NAME: RIGOBERTO SOLIS VS. JOSE CUEVAS

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: LU, VINH

TENTATIVE RULING:

Before the Court is an unopposed demurrer by defendant Vinh Lu (Defendant) to the complaint filed October 17, 2024.

A demurrer lies only for defects appearing on the face of the complaint or from matters of which the court must or may take judicial notice. (Code Civ. Proc., § 430.40.)

Defendant's demurrer is based on the argument that the action is barred by a two year statute of limitations for personal injury claims set forth in Code of Civil Procedure § 335.1.

The complaint filed **October 17, 2024** alleges that the incident occurred on **October 12, 2024**. Defendant argues that this is a typographical error, inasmuch as the police report from the incident notes the date of the collision as October 12, 2022. Defendant requests that the court take judicial notice of the occurrence date as listed in a police report, which they attach as Ex. B to a request for judicial notice.

The court declines the Defendant's request for the court to take judicial notice of the date of the motor vehicle accident as listed in the police report attached as Exhibit B to the Request for Judicial Notice. Although in ruling on a demurrer courts may take judicial notice of files in other judicial proceedings this does not mean that the courts take judicial notice of the truth of factual matters asserted therein. (*Beckley v. Reclamation Board* (1962) 205 Cal.App.2d 734, 741 (declining to take judicial notice of "official" engineering reports of a California governmental commission). The court in *Day v. Sharp* (1975) 50 Cal.App.3d 904 explained,

There exists a mistaken notion that this means taking judicial notice of the existence of facts asserted in *every document* of a court file, including pleadings and affidavits. However, a court *cannot* take judicial notice of *hearsay allegations* as being true, just because they are part of a court record or file. A court may take judicial notice of the *existence* of each document in a court file, but can only take judicial notice of the truth of facts asserted in documents such as orders, findings of fact and conclusions of law, and judgments.

Day, 50 Cal. App. 3d at 914 (Emphasis in original.)

This well established principle extends to police reports. A court may not take judicial notice of facts described in a police report in considering a demurrer. *Ramsden v. Western Union*

(1977) 71 Cal. App. 873, 878-79 (declining defendant's request for judicial notice of facts in arrest report).

Accordingly **the demurrer is overruled in its entirety**. Defendant must file a responsive pleading within 15 days of service of notice of entry of this order.

9. 9:00 AM CASE NUMBER: C25-01045
CASE NAME: JOSE LOPEZ-VALDEZ VS. LYFT, INC.,
*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL
FILED BY: JENKINS, MICHAEL MAURICE
TENTATIVE RULING:

The unopposed motion of David A. Melton and Heather Kelly-Cavanaugh to be relieved as counsel for Defendant Michael Jenkins is granted.

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. §§ 284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination upon the consent of both client and attorney, or upon order of the court, upon the application of either client or attorney, after notice from one to the other.

Michael Jenkins' Counsel has complied with the provisions of this rule and statute providing notice to client and supporting his motion with a declaration articulating the reasons for withdrawal.

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of **Defendant Michael Jenkins' Counsel** to be Relieved as Counsel of Record. This motion is **granted**.

Counsel is ordered to re-execute and submit a Proposed Order Granting Attorney's Motion to be Relieved as Counsel (Judicial Council Form MC-053), listing the appropriate next dates scheduled in the case. The withdrawal is effective upon David A. Melton and Heather Kelly-Cavanaugh filing proof of service of signed order on Defendant Michael Jenkins and all parties.

10. 9:00 AM CASE NUMBER: MSC21-01627

CASE NAME: JENNIFER BOSCH VS. CONTRA COSTA COUNTY

***HEARING ON MOTION FOR DISCOVERY CONT'D FROM 9/11/2026 (EXPARTE REQST). PLTF TO FILE AND SERVE OPPOSITION BY 5/4/26 AT NOON. DEF TO FILE REPLY BY 5/8/26 BY NOON**

FILED BY: CONTRA COSTA COUNTY

TENTATIVE RULING:

Before the court is Defendant Contra Costa County's motion to compel Plaintiff's continued deposition and require her to appear on a mutually agreeable time and date within 30 days.

The motion is granted.

By noon on May 12, 2026, Plaintiff's counsel shall provide Defense counsel with 5 dates beginning May 18, 2026 and ending June 18, 2026, inclusive, on which Plaintiff is available and shall appear for deposition at 9:00 a.m. (or at a time mutually agreed upon by the parties). Defense counsel shall select one of the dates and notify Plaintiff of its selection by noon on May 15, 2026. All notices are to be provided by email.

The Court awards monetary sanctions to the County in the amount of \$5,100 to be paid within 15 days of service of notice of entry of this order.

11. 9:00 AM CASE NUMBER: N26-0218

CASE NAME:

***HEARING ON MINOR'S COMPROMISE FOR ZACKHAEUS LUU**

FILED BY: LUU, LINDA

TENTATIVE RULING:

The Petition is approved. Counsel to submit proposed orders.

12. 9:00 AM CASE NUMBER: N26-0218

CASE NAME:

***HEARING ON MINOR'S COMPROMISE FOR CORTHELIA LUU**

FILED BY: LUU, LINDA

TENTATIVE RULING:

The Petition is approved. Counsel to submit proposed orders.

13. 9:00 AM CASE NUMBER: N26-0218

CASE NAME:

***HEARING ON MINOR'S COMPROMISE LEONIDIS LUU**

FILED BY: LUU, LINDA

TENTATIVE RULING:

The Petition is approved. Counsel to submit proposed orders.

Discovery Law & Motion

14. 9:01 AM CASE NUMBER: C25-01004

CASE NAME: ERICA DE SOUZA PEIXOTO VS. TARGET CORPORATION

*HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF ERICA DE SOUZA PEIXOTO'S FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE

FILED BY: TARGET CORPORATION

TENTATIVE RULING:

Before the court is Defendant Target Corporation's (Target) Motion compelling further responses to Request for Production (Set One) Nos. 20-21 to serve further Code-compliant responses and documents and for monetary sanctions. **The motion is granted.**

Plaintiff shall produce Code-compliant responses and documents, including **unredacted** liens, within thirty days of service of notice of this order. The court notes that a Protective Order governing the confidentiality of documents produced in this matter is already effective, having been issued by the court in July of 2025.

The Court orders monetary sanctions to be awarded in the amount of \$1,440 against Plaintiff Erica Peixoto and her attorneys of record, jointly and severally, and in favor of Target for misuse of the discovery process and for opposing this Motion without substantial justification. Sanctions must be paid within 15 days of service of notice of entry of this order.

15. 9:01 AM CASE NUMBER: C25-01631

CASE NAME: RACHEL HONG VS. JULIAN ORTON, III

*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER DISCOVERY RESPONSES TO REQUESTS FOR PROD OF DOCS

FILED BY: ORTON ENTERTAINMENT, LLC

TENTATIVE RULING:

Hearing date vacated by the moving party.

Issue Conferences

16. 10:00 AM CASE NUMBER: MSC21-01498

CASE NAME: BARRY HOSIER VS. CAMINO RAMON TERRACE OWNER'S ASSOCIATION
ISSUE CONFERENCE

FILED BY:

TENTATIVE RULING:

Parties to appear.